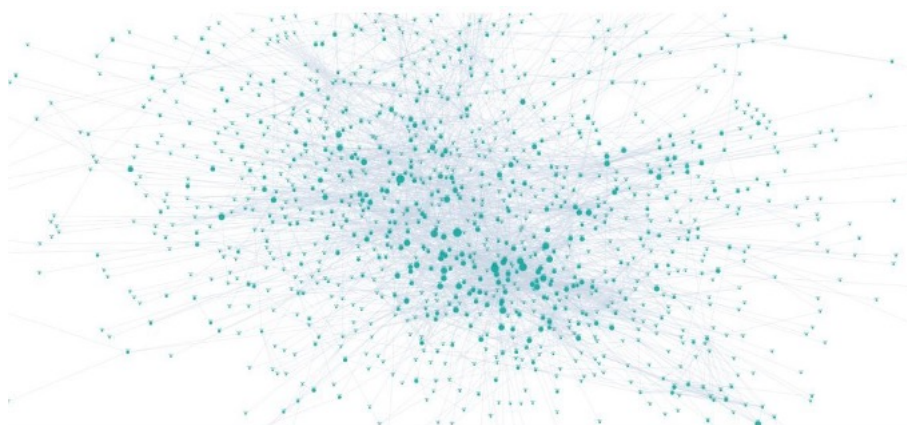


France Competition Authority

In 2020, the Autorité decided to create a dedicated digital unit in order to strengthen its resources in digital areas.¹² Launched in September of the same year, the digital economy unit is composed of four people (including two data scientists) and among its objectives, one of them is to develop new digital and computational tools allowing the Autorité to deepen its understanding of the digital sectors and to facilitate the works of the cases handlers. The following presents what the unit has done so far.

The Autorité has collaborated with the ministry of foreign affairs to develop a digital tool called “open terms archives”¹³ aimed at following the evolution of the terms of services for the main online service providers. Large digital companies hold today a central position, enabling them, through their ToS, to transform their practices and values into de facto standards which are at the heart of many aspects of our existence and our economies. With this tool, the case handlers will be able to verify the compatibility of these contractual frameworks with national and supranational law and also make sure that they comply with previous commitments. It creates transparency in the practices of digital players.

The Autorité is also engaged in an ongoing project aiming at identifying the quotes between decisions within the FCA in order to unveil the underlying graph (see picture below). For example, the most cited decision is one dating back to 2007 focusing on the market for high-speed Internet access (decision 07 D 33). The Autorité aims to publish an article describing the method used and the early results obtained by the end of the year. The code used to achieve it will also be released on an open-sourced basis at the same time and the final graph will also be made available online.



Picture 1: Overview of the Graph of the Autorité's decisions. The nodes are the Autorité's decisions and the edges the quotes between decisions

¹² The Autorité Creates a Digital Economy Unit, Autorité de la concurrence (January 9, 2020), <https://perma.cc/6742-UKUX>.

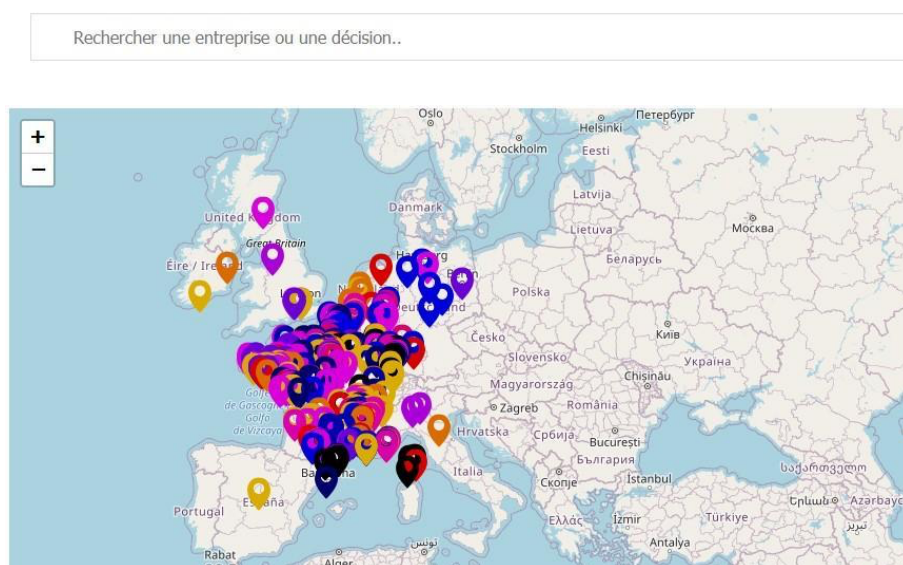
¹³ Open Terms Archives, <https://perma.cc/C6LE-ZZNE>.

The Autorité is also involved in the second phase of the DATACROSS project, which aims to improve the prototype tool assessing corruption risk factors in firms' ownership structure (risks of collusion, corruption, and money laundering in the European single market).¹⁴ It will be useful for cartel detection collaboration with other agencies. In parallel, the Autorité has also begun working on its own detection tool of collusion in public procurements based on the open-access databases available (DECP, BOAMP, INPI, etc.) combined with in-house indicators (to be built).

Furthermore, the Autorité proposes on its website an interactive map which geolocalizes more than 300 companies fined between 2009 and 2020.¹⁵ Crafted with open and free solutions, it aims at presenting in an innovative and interactive way the work carried out by the Autorité. Further, the underlying data is made available at Data.gouv.fr so that it can be reused in the framework of new projects.¹⁶

Finally, the digital economy unit is currently developing a variety of automated tools for ongoing cases investigated by the competition units within the Autorité. We will share the technology we have developed for those cases in due course.

CARTE DES SANCTIONS (2009-2020)



Picture 2: Glimpse of the interactive map, centered here on Europe

¹⁴ DataCros II Kick-off Meeting, Transcrime (Feb 23, 2022), <https://perma.cc/L5UZ-57FK>.

¹⁵ Key Figures, Autorité de la concurrence <https://perma.cc/K4EL-Z8EN>.

¹⁶ Entreprises sanctionnées financièrement par l'Autorité de la Concurrence entre 2009 et 2020, data.gouv.fr (Sept 7, 2021), <https://perma.cc/MJ8U-Z576>.